

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Md. Aminul Islam.

Civil Revision No.1323 of 2014.

Jahangir Chowdhury.

..... Petitioner.

Vs.

Harunur Rashid Chowdhury and another.

..... Opposite-parties.

No one appears.

..... For the petitioner.

Mrs. Joya Bhattacharjee, Advocate.

..... For the Opposite-parties.

Heard on:29.04.2024 and

Judgment on: 30.04.2024.

This Rule was issued calling upon the opposite-party No.1 to show cause as to why the impugned judgment and order dated 17.02.2014 passed by the learned District Judge, Habigonj in Miscellaneous Appeal No.11 of 2013 affirming the judgment and order dated 23.07.2013 passed by the learned Senior Assistant Judge, Sadar, Habigonj in Title Suit No.232 of 2011, should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

The facts leading to the issuance of the Rule in a nutshell can be stated thus, the plaintiff-opposite party No.1 filed a suit for declaration of title being Title Suit No.232 of 2011 and issued a show cause notice upon the defendants. Thereafter the plaintiff filed an application for temporary injunction on 25.03.2012 that the schedule property is not transferred to any other persons and granted the temporary injunction till disposal of the suit.

The defendant Nos.1 and 2 contested the suit by filing written objection against the temporary injunction. The defendant got the schedule property by way of two Heba deeds being No.1491 and 1492 respectively in the year of 2011. The defendant No.1 contacted for selling 47 decimals of land to Al-Amin and the Bainapatra was executed and registered deed No.4159 dated 11.09.2012 in respect of plot No.899 and handed over the possession and the defendant No.2 is in possession of the rest 15 decimals of land, in such way the defendant No.1 and 2 got 62 decimals of land and they are in owned and possessed in the suit schedule land. Therefore, the application for temporary injunction is not maintainable and thereby liable to be rejected.

After hearing both the parties and considering the materials on record the learned Senior Assistant Judge, Sadar, Habiganj on 23.07.2013 allowed the temporary injunction and directed to the parties to maintain status-quo in the suit schedule property.

Being aggrieved by and dissatisfied with the aforesaid order dated 23.07.2013 the defendant No.1 preferred Miscellaneous Appeal being No.11 of 2013 before the Court of learned District Judge, Habiganj who after hearing the parties and considering the materials on record dismissed the appeal by his judgment and order dated 17.02.2014.

Being aggrieved by and dissatisfied with the aforesaid judgment and order dated 17.02.2014 passed by the learned District Judge, Hobiganj in Miscellaneous Appeal No.11 of 2013 dismissed the appeal, the defendant-

appellant-petitioner preferred the Civil Revision under section 115(1) of the Code of Civil Procedure before this Court and obtained the instant Rule.

This matter has been appearing in the daily cause list with the name of the learned Advocate for both the parties but no one appears on behalf of the petitioner. So, this matter has taken up for hearing and disposal on merit.

The defendant-petitioner filed a revisional application on the ground that both the Courts below utterly failed to consider the material law points for deciding the litigation between the parties and thus have committed error of law resulting in an error in the decision occasioning failure of justice and as such the impugned judgment and order is liable to be set aside for ends of justice. The petitioner has legally executed and registered a Baini Nama and he is entitled to execute and register the deed of sale accordingly, otherwise he will suffer irreparable loss and injury and as such the impugned order of status-quo is liable to be set aside.

Mrs. Joya Bhattacharjee, the learned Advocate appearing on behalf of the opposite-party No.1 oppose the Rule and submits that the learned Judge of the Trial Court has rightly passed an order to maintain status-quo in respect of possession and position of the suit land as well as the learned Judge of the Appellate Court has rightly and correctly dismissed the Miscellaneous Appeal and affirming the judgment and order of the trial Court directed to both the parties to maintain status-quo and as such she prayed for discharging the Rule.

Heard the learned Advocate for the opposite party, perused the impugned judgment and order of the Appellate Court below as well as the order of the trial Court including all other connected papers.

On perusal of the papers along with the certified copies of the original application of the temporary injunction, written objection & relevant documents it transpires that the plaintiff-opposite party No.1 filed a suit for declaration of title being Title Suit No.232 of 2011 and issued a show cause notice upon the defendants. Thereafter the plaintiff filed an application for temporary injunction on 25.03.2012 that the schedule property is not transferred to any other persons and granted the temporary injunction till disposal of the suit. The plaintiff claimed that the plaintiff was owned and possessed in the suit schedule land by way of oral gift in the year of 2011. On the other hand the defendant got the schedule property by way of two deeds being No.1491 and 1492 respectively in the year of 2011. The defendant No.1 executed and registered a Bainapatra for selling being deed No.4159 dated 11.09.2012 to Al-Amin in respect of plot No.899 measuring area of 47 decimals of land and handed over the possession and the defendant No.2 is in possession of the rest 15 decimals of land. It obvious to note that both the parties are demanded their title and possession over the suit land. In such a case, right, title and possession of the parties will be decided by the trial Court by taking evidences both oral and documentary. It is apparent that the trial Court while disposing of the application for temporary injunction felt the necessity to enter into the merit of the suit and it was a affirming findings of the Court's below and prior to disposal of the

original suit on merit after taking evidences from the sides of the respective parties, it cannot be ascertained as to who between the two parties have the actual legal right, title and possession. Therefore, the aforesaid findings is well reasoned, consistent and practical which deserve no interference by this Court.

Nevertheless, in view of the facts and circumstances of the case in this context I do appreciate the submissions advanced from the sides of the learned advocate for the opposite-parties. I have the reason to incline that prior to disposal of the original suit on merit, the order of status-quo which is prevailing from the very beginning appears to be a just and appropriate relief at this stage to avoid further complications and multiplicity of cases and to maintain peace and harmony among the parties. Therefore, I find no merit in this Rule.

In the result, the Rule is discharged.

However, there will be no order as to cost.

The concerned parties are directed to maintain status-quo in respect of position and possession of the suit land till disposal of the suit on merit.

The learned Judge of the trial Court is directed to dispose of the suit on merit after taking evidence within 6(six) months from the date of receipt of the judgment and order positively.

Communicate the judgment and order at once.